



JAMAICA CONSTABULARY FORCE

Policy and Standard Operating Procedures for the Management of Investigations of Collisions and Other Incidents Involving Service Vehicles

Title: Jamaica Constabulary Force Policy and Standard Operating Procedures for the Management of Investigations of Collisions and other Incidents Involving Service Vehicles	Number: JCF/FW/PL/Ops/0002/2022
Effective Date: 2022-Aug-25	Pages: 16
Review Date: 2022-Aug-18	Distribution: Force-wide
Revision #: 3	Process Owners: JCF
Rescinds: F.O. # 3814 Sub #5 dd 2020-Jul-09	Accreditation Standards:
Authors: PRDB, JCF	Owner: JCF
First Published: F.O. # 3925, dated 2022-Aug-25	Review: Bi-annual

Table of Content

Table of Content	2
1.0 Introduction.....	3
2.0 Purpose.....	3
3.0 Scope.....	3
4.0 Abbreviations	3
5.0 Definition of Terms.....	4
6.0 Responsibilities	5
7.0 Policy Statement	6
8.0 Standard Operating Procedures.....	6
8.1 Procedure after a collision or other incident	6
8.2 Working Instructions - General Procedures.....	12
9.0 Legislative Authority/Guiding Principles	13
10.0 Relevant Records and Forms	13
Appendix A: ACCIDENT DATA FORM.....	14
Appendix B: INCIDENT DATA FORM	15
Appendix C: Notice of Suspension from Driving Duties and Driving Allowance	16

1.0 Introduction

The Jamaica Constabulary Force (JCF) operates its fleet of service vehicles in an effort to enable divisions and formations to manage and promote public safety and security and to quickly respond to incidents of crime. The loss of use of service vehicles through collisions and other incidents significantly reduces the JCF's ability to carry out these activities. Consequently, each event of a service vehicle collision or other incidents must be treated promptly and the management of the investigation process be thorough, and fair.

The procedures for investigating and reporting of collisions involving service vehicles as previously promulgated vide Force Orders No. 3814 dated 2020-Jul-09 is hereby rescinded and replaced with this Policy and Standard Operating Procedures for the Management of Investigations of Collisions and other Incidents Involving Service Vehicles.

This Policy and SOP is in keeping with the requirements of Section 26 of the Financial Administration and Audit Act, 2012 and the Government of Jamaica (GOJ) Revised Comprehensive Motor Vehicle Policy for the Public Sector (June 19, 2017).

2.0 Purpose

The purpose of this Policy and Standard Operating Procedures (SOP) is to set out guidelines and a standardized approach for the management of all collisions and other incidents involving service vehicles for efficiency, and to optimize frugality in the operations of all service vehicles.

3.0 Scope

This Policy and SOP shall apply to all sworn and unsworn members of the JCF and its auxiliaries. It covers the reporting requirements, investigation and other activities to be undertaken when a service vehicle is involved in a collision or other incidents.

4.0 Abbreviations

4.1 AIRU – Accident Investigation and Reconstruction Unit

4.2 IPROB – Inspectorate and Professional Standards Oversight Bureau

4.3 PSTEB – Public Safety and Traffic Enforcement Branch

5.0 Definition of Terms

For the purpose of this policy and SOP the following definitions shall apply:

5.1 Collisions involving service vehicle

Means when a service vehicle:

- a) hits another vehicle, person or object;
- b) is hit by another vehicle; or
- c) overturns

which may result in one or any combination of the following: i) injury, and/or death of occupant(s) or third party; ii) damage to service vehicle and/or other vehicles; iii) damage to other property.

5.2 Other incidents

any other event, unexpected or otherwise, which is not a collision and include but not limited to: acts of God, larceny, malicious destruction of property, damage caused by faulty internal electrical wiring or any other damage or deficiency which is not part of or occasioned by a collision

5.3 Service vehicle

vehicles owned by the Commissioner of Police, whether marked or unmarked, for the undertaking of official police duties

5.4 Classes of service vehicles

- 1) Class A - all heavy duty service vehicles such as trucks and tractors;
- 2) Class B - all service vehicles such as Coaster and Hiace buses, and
- 3) Class C - all motorcars not including Classes A and B

5.5 Force Driver:

any member of the JCF (whether sworn or unsworn) and its auxiliary who have been trained, certified and authorized by the Commissioner of Police to drive service vehicle(s) of specified class(es), and who has in force, at the time of driving, a valid drivers' licence issued by the Government of Jamaica

5.6 Authority to drive service vehicles:

an instruction or permission issued by the officer in command of a division to which a service vehicle is assigned, for a Force Driver to drive a service vehicle on a specified day, date and time and for official police duties

5.7 **Official police duties:**

any duty authorized by the Commissioner of Police or any officer to which this function is delegated or in execution of the duties of the office of constable

5.8 **Unauthorized passenger:**

any passenger who is not a member of the security force and: 1) is not involved, has an interest or connected in any manner to a matter relevant to the office of constable; or 2) is not granted permission by the officer in command of the division to which the respective service vehicle is attached to ride in that service vehicle.

NB This does not include members of the Jamaica Defence Force, Municipal Police, Justices of the Peace, Certifying Officers or other personnel operating in the course of law enforcement operations

6.0 **Responsibilities**

The following are key responsibilities

6.1. Assistant Commissioner of Police, Public Safety and Traffic Enforcement Branch (PSTEB) is responsible to:

6.1.1 ensure that all service vehicle collisions are monitored and investigated via the correct investigation procedures;

6.1.2 ensure that all data concerning service vehicle collisions are collated at PSTEB Headquarters;

6.1.3 monitor and ensure that all Accident Report Booklets (ARBs) are completed and a copy sent to PSTEB Headquarters no later than the 10th day of each month;

6.1.4 monitor and provide expert guidance in the investigation of service vehicle collisions;

6.1.5 direct/conduct reviews or case conferences on complex collision investigations to ensure quality control and proper completion of files;

6.1.6 where required, reassign or assume investigation of service vehicle collisions where discrepancies or conflict of interest arise; and

6.1.7 analyse service vehicle collisions data and provide appropriate recommendations.

7.0 Policy Statement

The Jamaica Constabulary Force reiterates its commitment to the prudential management of service vehicles, and as such, will take all necessary steps in order to minimise the risk of loss, damage or deficiency of its fleet, and to ensure efficiency in its operation. It is therefore the policy of the JCF that:

- 7.1 Service vehicles shall be used for police duties;
- 7.2 Only authorized persons shall be allowed to drive service vehicles;
- 7.3 No unauthorized passenger shall be conveyed in service vehicles;
- 7.4 An entry detailing the names, purpose and destination of all persons being conveyed in a service vehicle must be made in the Station Diary or Station Record Management System (SRMS);
- 7.5 Responsibility for the investigation of collisions and other incidents involving service vehicles rests with the officer in command of the division where the collision or incident occurred;
- 7.6 In the event of a collision, the Force Driver may immediately be relieved of driving duties, taking into account his/her mental, physical and emotional well-being for at least forty-eighty (48) hours from the time the collision occurred;
- 7.7 After a collision/other incident in which there is injury to person or damage to property, the service vehicle involved shall be taken out of service to facilitate investigation; and
- 7.8 All service vehicle collisions shall be investigated by a sub-officer not below the rank of sergeant.

8.0 Standard Operating Procedures

The following are the procedural guidelines for the management of collisions and other incidents involving Service Vehicles

8.1 Procedure after a collision or other incident

8.1.1 *Responsibilities of Force Driver after a collision:*

In the event of a collision or other incident involving a service vehicle, the Force Driver shall:

- 8.1.1.1 under no circumstances, declare responsibility or accept liability to a third party for any injury or damage caused;

8.1.1.2 immediately, or as soon as is practicable report the collision or other incident to the Police Emergency Communication Centre (PECC), to his or her immediate supervisor and the police station in the area in which the collision or other incident occurred;

8.1.1.3 make an entry in the service vehicle log book, detailing the following:

- a. the circumstance of the collision or other incident;
- b. any complaint(s) of injury or report of fatality;
- c. physical evidence of damage to service vehicle, other vehicle(s) and/or other property; and
- d. condition of spare tire and accessories such as, battery, lug tools, radios, devices and other property.

8.1.1.4 where possible, take and retain images of vehicle, spare tire and accessories such as, battery, lug tools, radios, devices and other property;

8.1.1.5 retrieve and hand over service vehicle log book and images to the officer in charge of the division to which the vehicle is assigned;

8.1.1.6 complete and sign the **Accident Data Form (Appendix A)** in cases of collision or the **Incident Data Form (Appendix B)** in all other incidents, ensuring that the details of the other vehicle(s) and party(ies) are ascertained;

8.1.1.7 submit to a breathalyzer test immediately after the collision;

8.1.1.8 hand over the service vehicle, keys, spare parts and accessories such as tires, battery, lug tools, radios, devices and other property to the investigating officer; and

8.1.1.9 where practicable, submit statements to the investigating officer within twenty-four (24) hours.

8.1.2 ***Responsibilities of Investigating Officer***

In the case of a collision, the investigating officer shall:

8.1.2.1 request of the drivers involved to submit to a breathalyzer test;

8.1.2.2 serve warning notices of intended prosecution where required;

8.1.2.3 arrange for the vehicle(s) to be examined by a Certifying Officer immediately, or no later than twenty-four (24) hours after the collision;

NB. A report from the Certifying Officer must be on the completed case file

8.1.2.4 arrange for the AIRU to process the scene immediately;

NB. A report from the AIRU must be on the completed case file

8.1.2.5 record whether or not emergency signals (lights/siren) were being used at the time of the collision. The circumstance of the emergency must be stated in the initial report. If emergency signals were being used, the PECC or Supervision Log authorizing usage must also be included on the case file;

8.1.2.6 if for any reason the Force Driver is unable to hand over the service vehicle, keys and all spare parts and accessories, the investigating officer should arrange for the handing over of these items to the station officer;

8.1.2.7 within fourteen (14) days, collect statements from the driver(s), passenger(s), first responders and all witness(es). Where additional time is required, a written authorization must be sought from the commanding officer of the Division in which the collision occurred; and

8.1.2.8 within twenty-four (24) hours, submit an initial report along with the completed and signed **Accident Data Form** to the officer in charge of the division in which the collision occurred. This report must include, *inter alia*:

- i. the circumstances of the collision;
- ii. the circumstances of the emergency (if applicable)
- iii. name(s), address(es) and contact of interested or affected party(ies);
- iv. results from the breathalyzer test;
- v. list of keys, spare parts and accessories such as tires, battery, lug tools, radios, devices and other property secured from the service vehicle; and
- vi. where possible, a submission as to the party likely responsible for the collision.

8.1.3 Responsibilities of the Investigating Officer in any other incident which results in the loss or damage of a service vehicle:

In cases of loss or damage to service vehicle in all other incidents, the investigating officer shall:

8.1.3.1 take all necessary steps to retrieve/secure vehicle, keys, spare parts and accessories such as tires, battery, lug tools, radios, devices and other property;

8.1.3.1 collect statement from the last driver, first responder and witness(es);

8.1.3.2 take or cause to be taken image and other evidentiary materials;

8.1.3.3 immediately contact Scenes of Crime for further evidence gathering where needed;

8.1.3.4 Complete **Incident Data Form**; and

8.1.3.5 submit case file to the Case Registry.

8.1.4 Responsibilities of officer in charge of the division in which the collision/other incident occurred:

After a collision or incident involving a service vehicle, the officer in charge of the division in which the collision or incident occurred shall, in the case of a collision:

8.1.4.1 where a member or other persons have received injuries, ensure the necessary medical attention is given;

8.1.4.2 cause a preliminary report and the completed **Accident Data Form** in case of collision or **Incident Data Form** in cases of other incident to be submitted within 24 hour to the following: Deputy Commissioner of Police, IPROB; Assistant Commissioner, Technology Branch, Assistant Commissioner of Police, Services Branch Assistant Commissioner of Police, PSTEB, head of Formation to which the service vehicle is assigned;

This report must contain, *inter alia*:

- i. an informed opinion of the cause of the collision or other incident;
- ii. appropriate recommendation(s) to include suspension from driving duties and or cessation of Driving Allowance as deemed fit based on the evidence or information obtained from the initial investigation; and

- iii. names of person(s) against whom legal proceedings may be instituted.

8.1.4.3 within seven(7) days, submit a written report to the Assistant Commissioner of Police, Services Branch detailing; where applicable, fatalities, injuries, the extent of damage to the service vehicle and other vehicle(s) or property(ies), an informed opinion on whether or not the Force Driver was at fault, names of other parties and insurance companies. This report shall also state any action taken, proposed action(s), possibility of a civil action against the Force, and whether or not the other party has expressed willingness to pay for the cost of repairs to the service vehicle;

8.1.4.4 where the investigation is unable to determine who is culpable, the file must be submitted to the Clerk of Courts for a ruling within two months from the date of the collision;

8.1.4.5 where the file is submitted to the Clerk of Courts for a ruling, charges should not be preferred until the ruling is obtained. Every effort should be made to obtain an early ruling from the Clerk of Courts in order that the appropriate action(s) can be taken without undue delay;

8.1.4.6 collision files that are investigated within Kingston & St. Andrew that require a ruling from the Clerk of Courts must be forwarded to the Assistant Commissioner of Police, PSTEB;

8.1.4.7 collision files that are investigated outside of Kingston and St. Andrew that require a ruling from the Clerk of Courts must be forwarded to the Clerk of Courts through the Divisional Registry.

8.1.5 Responsibilities of the officer in charge of the division to which a Force Driver involved in a collision or incident is attached:

The officer in charge of the division to which a Force Driver who is involved in a collision or other incident is attached shall:

8.1.5.1 in the case of a collision, relieve the Force Driver of all driving duties for a period of forty-eight (48) hours. This is to facilitate the recuperation of the member and to allow for the preliminary assessment of the investigation;

8.1.5.2 once it has been determined by the outcome of the investigation that the Force Driver is at fault, the member's Commanding Officer shall cause he/she to be served a Notice of Suspension from Driving Duties and Driving Allowance (**Appendix C**);

8.1.5.3 submit a copy of the Notice of Suspension from Driving Duties and Driving Allowance to the Deputy Commissioner of Police, IPROB, Principal Officer, JCF Finance Branch; the Senior Director, Human Resource Management and Development Division; and the Assistant Commissioner; Administration Branch;

8.1.5.7 in case where there is no third party involved and the Force Driver accepts liability, coordinate through the Assistant Commissioner of Police, Services Branch; Director, Legal Affairs Division; and the Principal Director, Finance Branch on any agreement, which must be in writing, with the Force Driver.

In out of court settlements, consideration should be given to recover costs for repairs or replacement of unit and wrecking fees. Additionally, where applicable, the Force Driver must produce evidence that he/she has made arrangement with the appropriate Government agency in cases where there are damage/destruction of road furniture such as traffic signal, light poles, barriers/guardrails etc.

8.1.5.8 Once suspended from Driving Duties and Driving Allowance, the member shall not be permitted to return to driving duties or be paid the associated allowance until the completion of a thorough review by the IPROB and instruction is given by the Commissioner of Police.

8.1.6 *Responsibilities of the Deputy Commissioner of Police, IPROB:*

In case of collisions involving service vehicles, the Deputy Commissioner of Police, IPROB will where necessary, monitor investigations in order to ensure that:

8.1.6.1 they are conducted impartially;

8.1.6.2 procedures contained in this Policy and SOP are adhered to; where breaches are detected, direct/take appropriate actions; and

8.1.6.3 in cases where members are suspended from Driving Duties and Driving Allowance, review and recommend reinstatement or otherwise to the Commissioner of Police.

8.1.7 Responsibilities of the Assistant Commissioner of Police, Services Branch

The Assistant Commissioner of Police, Services Branch shall:

8.1.7.1 submit to the Financial Secretary, Ministry of Finance and Planning and the Auditor General Department, a Monthly Return of all collisions and other incidents involving service vehicles. The Monthly Returns shall include:

- i. comprehensive reports and associated **Accident Data Form** in respect to all collisions involving service vehicles;
- ii. comprehensive reports and **Incident Data Form** on all other incidents involving service vehicles; and
- iii. an estimate of the cost to repair or replace service vehicles

8.1.7.2 give instructions regarding repairs to service vehicles damaged in collisions to Formations concerned;

8.1.7.2 coordinate through the Attorney General; Director, Legal Affairs Division and the Principal Financial Officer, Finance Branch on any agreement, which must be in writing, in instances where a third party has accepted liability and is willing to settle out of court.

8.2. Working Instructions - General Procedures

8.2.1 All service vehicles must be repaired at a garage approved by Services Branch.

8.2.2 On no account should a service vehicle be repaired without the approval of the Commissioner of Police, Assistant Commissioner of Police, Services Branch, or the Senior Superintendent of Police, Transport Management and Maintenance Division.

8.2.3 After a service vehicle has been repaired, it must be inspected and certified by the officer in charge Transport Management and Maintenance Division or his designee prior to going back into service.

8.2.4 All persons suspended from driving duties and allowances for a period of five years or more, shall undergo approved remedial driving and maintenance training prior to resumption of driving duties.

8.2.2 ***Compensation for Loss or Damage due to Negligence of Force Driver***

Where a Force Driver is found to be negligent in the loss or damage of a service vehicle, the following will apply:

8.2.2.1 the Force Driver may be required to compensate for the loss or damage of the service vehicle; and

8.2.2.2 all efforts should be made to recover the full cost of the loss or damage

9.0 Legislative Authority/Guiding Principles

This policy and SOPs is in keeping with provision contained in the following legislation and policies:

9.1 Road Traffic Act and Regulations

9.2 Evidence (Amendment) Act

9.3 Government of Jamaica Revised Comprehensive Motor Vehicle Policy for the Public Sector 2017

10.0 Relevant Records and Forms

The following is a list of related Records and Forms:

10.1 Station Diary/Station Records and Information Management System

10.2 Traffic Diary

10.3 Accident Report Booklet

10.4 Accident Data Form

10.5 Incident Data Form

Appendix A:

ACCIDENT DATA FORM

Date of Accident	Time of Accident	Accident Location	
Name of Government Driver		Name of Passenger in Government Vehicle	
Driver's Licence No.			
Expiry Date			
Government Vehicle Type	Government Vehicle Make/Model	Government Vehicle Licence Plate Number	
Particulars of Other Vehicle(s) involved in the Collision			
	Vehicle 1	Vehicle 2	Vehicle 3
Licence Plate Number			
Vehicle Make/Model			
Name of Driver			
Driver's Licence Number			
Driver's Licence Expiry Date			
Name of Insurer			
Insurance Certificate Expiry Date			
Certificate of Fitness Expiry Date			
Motor Vehicle Registration Certificate Expiry Date			
Name of Persons Injured			
Other Property(ies) Damaged			

Driver's Signature _____ Date _____

**Jamaica Constabulary Force****Appendix B: INCIDENT DATA FORM**

Date of Incident	Time of Incident	Incident Location	
Name of Government Driver		Name of Passenger in Government Vehicle	
Driver's Licence No.			
Expiry Date			
Government Vehicle Type	Government Vehicle Make/Model	Government Vehicle Licence Plate Number	
Particulars of Incident			
Name of Persons Injured			
Other Property(ies) Damaged			

Driver's Signature_____

Date _____

Appendix C:**Jamaica Constabulary Force****Notice of Suspension from Driving Duties and Driving Allowance**

This serves to notify you, _____, that you are suspended
 (Name of Force Driver)
 from driving duties and will cease earning driving allowances with effect from

Signature of Commanding Officer

Date

Endorsement of Service

Served personally by me this _____ day of _____ 20 _____ about _____ am/pm at
 _____ in the parish of _____ on

Name of Force Driver

Signature

Rank/Position

Jamaica Constabulary Force Policy and Standard Operating Procedures for the Management of Investigations of Collisions and other Incidents Involving Service Vehicles